

Texas WIC Health and Human Services Commission

Effective April 1, 2026

Policy No. FD:12.0

Food Packages

Purpose

To establish procedures for the issuance of allowable foods within the food packages. To ensure food benefits are appropriate for each participant's health and nutritional needs.

Authority

7 CFR 246.10; 26 TAC 366.21

Policy

Food packages must be prescribed by a Certifying Authority (CA) or WIC Certification Specialist (WCS). Monthly food benefits are valid for one calendar month, the first day of the month through the last day of that same month. Full food package benefits will be issued to participants on or before the 15th day of the month; partial food package benefits will be issued to participants obtaining food benefits on or after the 16th day of the current month. Formula issuance will be prorated every 10 days for the current month based on the number of days remaining in the month. Participants shall only receive those foods allowed in their participant profile, and their dietary needs and food preparation/storage needs.

Definitions

Electronic Benefits Account (EBA) – the account where food benefits are being held for redemption.

Upload/Load benefits to EBA – benefits are uploaded to the EBA, instead of being written to the card.

Procedures

- I. Food packages must be prescribed by the CA or WCS in consultation with the participant and registered dietitian (RD) when necessary. The

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food package must accommodate the individual's age, dietary needs, medical/nutritional conditions, and living conditions.

- II. All food package changes are the responsibility of a CA or WCS. For WCS, refer to Policy [FD:13.0 Issuance of Contract Infant Formula](#), [FD:16.0 Approval of Non-Contract Formulas](#), [FD:16.1 Issuance of Formula Food Packages and Transfer Scenarios](#) and [FD:19.0 Managing Returned Formula](#) for further instructions regarding food package changes which include formula.
- III. Individual participant food package benefits will be uploaded to the economic unit's electronic benefit account (EBA). After all family members' food packages are uploaded to the economic unit's EBA, staff must:
 - A. Review the shopping list for accuracy of the food package and amount. The LA may be held financially accountable for all improperly redeemed food benefits.
 - B. Offer a copy of the shopping list and inform the client that they can view their food benefits on myWIC.
 - C. Review the shopping list with the client.
 - D. At the first visit, staff must offer a copy of the Texas WIC Shopping Guide and inform the client that they can view the shopping guide on myWIC.
- IV. *Infant Food Packages*
 - A. Food packages for the breastfeeding mother and infant dyad are closely tied and must match except when the mother is breastfeeding multiple infants with differing breastfeeding statuses or if the woman is a surrogate or birth mother whose infant is adopted (refer to [Policy FD:10.0 Issuing Food Packages for the Mother/Infant Dyad](#)).
 - B. Staff must assess breastfeeding status of breastfeeding infant participants at the time of each issuance. If the infant is no longer

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breastfeeding, staff must enter the date breastfeeding ended and update the infant breastfeeding frequency on the infant's participant page prior to issuance.

- C. The parent/guardian can choose between four infant food packages including:
 - 1. Fully breastfeeding – for infants who are breastfed and do not receive infant formula from WIC.
 - 2. Partially breastfeeding – for infants who are breastfed and receive approximately a half package or less of infant formula.
 - 3. Some breastfeeding - for infants who are breastfed at least one time a day and receive greater than a half package of infant formula.
 - 4. Fully formula fed – for infants who are fully formula fed.
- D. The parent/guardian of an infant 6-11 months of age may choose a fruit and vegetable cash value benefit (CVB) in place of all or some containers of infant fruits and/or vegetables after an individual nutrition assessment. Refer to [FD:12.1 Food Package Substitutions, Tailoring and Exchanges](#) for instructions.

V. Child Food Packages

- A. Children under two years of age receive a food package with whole milk (buttermilk is not an option).
- B. Children two through four years of age receive a food package with fat-free, low-fat milk and/or low-fat buttermilk.

VI. Pregnant Women Food Packages

- A. Women with singleton (one infant) pregnancies must receive the Pregnant woman food package.
- B. Women who are pregnant with multiples receive the Pregnant with Multiples food package.

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- C. Pregnant women who are partially breastfeeding singleton infants receive the Pregnant Partially Breastfeeding (PBF) package.
- D. Pregnant women who are fully breastfeeding singleton infants must receive the Pregnant Fully Breastfeeding (FBF) package.

VII. *Fully Breastfeeding Women Food Packages*

The Fully Breastfeeding (FBF) food package may be issued to a breastfeeding mother in any month during which the participant's infant receives no formula up to the infant's first birthday.

- A. When a Fully Breastfeeding food package has been issued and the parent/guardian returns to the clinic to request formula for the infant:
 - 1. If some benefits have not been redeemed and her food package has enough remaining foods to complete the replacement food package, staff must perform a food package exchange and replace for the mother's food package and issue a formula package to the infant for current and future months.
 - 2. If there are not enough benefits to exchange her food package, the mother is not eligible for a food package exchange for the current month and the infant is not eligible for a formula package. Refer the mother to the local agency peer counselor, designated breastfeeding expert, lactation consultant or other staff trained in lactation management for support maintaining lactation and/or local resources for formula.
- B. A breastfeeding woman of multiple births from the same pregnancy (e.g., twins, triplets) is eligible to receive the *Partially Breastfeeding Multiples* food package in the following situations:
 - 1. One infant is not receiving formula from WIC.
 - 2. Two infants are partially breastfeeding.
 - 3. One infant is partially breastfeeding and another infant is some breastfeeding.

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- C. A breastfeeding woman who has multiple infants from the same pregnancy is eligible to receive the *Fully Breastfeeding Multiples* package (which is equivalent to 1.5 times the Fully Breastfeeding Package) if two infants are not receiving formula from WIC.

VIII. Partially Breastfeeding Women Food Packages

- A. When a Partially Breastfeeding food package has been issued with less than the partial maximum amount of formula and the mother returns to request additional formula for the infant within the current benefit period, follow the procedures below. If the request is to increase, staff may increase up to the Partial Max at issuance.
- B. Up to the full formula package:
 - 1. Provide breastfeeding counseling according to [Policy BF:01.0 Breastfeeding Promotion and Support Standards](#) Procedure C.
 - 2. Inform the woman that if she chooses to continue breastfeeding at least one time a day but prefers to receive a full package of formula for her infant, she will not be eligible to receive food benefits after the infant turns six month of age but will be eligible to receive breastfeeding support.
 - 3. If the woman still desires an increase in formula, staff ensure the woman's current food package can be voided and replaced in the MIS.

IX. Some Breastfeeding Women Food Packages

The Some Breastfeeding profile allows a woman to receive food benefits up to the last day of the month that the infant turns six months.

- A. The participant is no longer eligible to receive a food package when she is six months postpartum but does continue to receive breastfeeding support including peer or lactation consultant counseling, breast pumps and participant-centered nutrition education, up to one year postpartum.

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- B. If certified after six months postpartum, the participant should be encouraged to utilize WIC services, although she will not receive food benefits.

X. Postpartum Women Food Packages

Postpartum women who are not breastfeeding and whose infants are receiving a full formula package are issued the Postpartum food package for up to the last day of the month the infant turns six months.

XI. Other Food Package Types

- A. Limited or No Refrigeration food package may be issued to participants when there is a lack of food storage or food preparation facilities.
 - 1. The food package provides peanut butter and/or canned beans as a substitute for eggs.
 - 2. Dry powder milk is provided and the package excludes cheese and yogurt.
- B. Lactose-free milk food packages can be issued by request to women and children. Participants may report lactose intolerance diagnosed by a physician, describe symptoms of lactose intolerance (nausea, gas, diarrhea, abdominal bloating or cramps) when dairy products are consumed or prefer lactose-free milk. Medical documentation is not required for lactose-free milk.
- C. Soy milk food packages can be issued by request for women and children. Reasons for issuing include, but are not limited to: milk allergy, lactose intolerance, galactosemia, vegan diet and cultural practices. Medical documentation is not required for soy milk.
- D. Low-fat milk (1% or fat-free milk) is available to children under two years of age for overweight, obesity or for other medical conditions such as fatty acid deficiency that is self-reported by parent/guardian/caretaker or as reported by a healthcare provider

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or registered dietitian (RD). Low-fat milk can be issued by substitution in place of whole milk in the standard food package.

1. A CA or WCS, after consultation with the parent/guardian/caretaker and/or HCP if necessary can make a determination for the need for low-fat milk based on the complete nutrition assessment (e.g., dietary intake, risk code assignment, etc.).
2. A CA can approve low-fat milk for medical reasons in consultation with healthcare provider if necessary. If self-reported by a parent/guardian/caretaker, an RD must approve.

XII. Food Package Substitutions, Tailoring and Exchanges.

- A. Food item substitutions can be made to meet participants' medical needs, cultural eating patterns, or food preferences. Food packages can be tailored or exchanged to meet participants' needs. See [FD:12.1 Food Package Substitutions, Tailoring and Exchanges](#).

XIII. Issuing Packages with Formula

- A. For special dietary needs food packages with formula for woman and children, refer to [Policy FD:16.1 Issuance of Formula Food Packages and Transfer Scenarios](#).
- B. For food packages with formula, the current month formula issuances will be prorated, except for issuances on the first day of the month. The quantity of formula issued by the MIS will be prorated every 10 days for the current month.
- C. Children and women may be issued up to a full quantity of formula. Lower quantities may be issued if specified by the healthcare provider on the Texas WIC Medical Request for Formula/Food or Texas WIC Medical Request for Metabolic Formula/Food form or by parent/guardian request.

XIV. WIC standard food packages for the 5 categories of participants are defined below:

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A. Federal Regulations Food Package I - Infants (age 0 through 3 months):

1. Fully breastfeeding – Breastfeeding support, no foods
2. Partially breastfeeding – Formula
 - a. up to 388 fluid ounces reconstituted concentrate,
 - b. up to 435 fluid ounces reconstituted powder, or
 - c. up to 384 fluid ounces ready to feed
3. Formula feeding – Formula
 - a. up to 823 fluid ounces reconstituted concentrate,
 - b. up to 870 fluid ounces reconstituted powder, or
 - c. up to 832 fluid ounces ready to feed

B. Federal Regulations Food Package I - Infants (age 4 through 5 months):

1. Fully breastfeeding – Breastfeeding support, no foods
2. Partially breastfeeding – Formula
 - a. up to 460 fluid ounces reconstituted concentrate, up to 522 fluid ounces reconstituted powder, or
 - b. up to 474 fluid ounces ready to feed
3. Formula feeding – Formula
 - a. up to 896 fluid ounces reconstituted concentrate,
 - b. up to 960 fluid ounces reconstituted powder, or
 - c. up to 913 fluid ounces ready to feed

C. Federal Regulations Food Package II - Infants (age 6 through 11 months):

1. Fully breastfeeding
 - a. 16 ounces of infant cereal,
 - b. 32 4-ounce containers of infant fruits and/or vegetables
 - c. 16 2.5-ounce containers of infant meats
2. Partially breastfeeding
 - a. up to 315 fluid ounces reconstituted concentrate,

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- b. up to 384 fluid ounces reconstituted powder, or
- c. up to 338 fluid ounces ready to feed, and
- d. 8 ounces of infant cereal
- e. 32 4-ounce containers of infant fruits and/or vegetables

3. Formula feeding

- a. up to 630 fluid ounces reconstituted concentrate,
- b. up to 696 fluid ounces reconstituted powder, or
- c. up to 643 fluid ounces ready to feed
- d. 8 ounces of infant cereal
- e. 32 4-ounce containers of infant fruits and/or vegetables

D. Federal Regulations Food Package III - Infants (age 6 through 11 months) – Special Dietary Needs (requires a prescription)

Amounts as prescribed by the healthcare provider, not to exceed amounts below:

1. Partially breastfeeding – Formula

- a. up to 460 fluid ounces reconstituted concentrate,
- b. up to 522 fluid ounces reconstituted powder, or up to 474 fluid ounces ready to feed

2. Formula feeding – Formula

- a. up to 896 fluid ounces reconstituted concentrate,
- b. up to 960 fluid ounces reconstituted powder, or
- c. up to 913 fluid ounces ready to feed

E. Federal Regulations Food Package III - Women and Children with Special Dietary Needs

Amounts as prescribed by the healthcare provider, not to exceed amounts below):

- 1. Formula, up to 455 ounces liquid concentrate (or equivalent amount of powder reconstituted to 910 ounces or less)

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2. Whole Milk (fluid) up to amount allowed by participant category
(A maximum of 1 pound of cheese may be substituted for 3 quarts of milk)
3. Cereal (breakfast cereal OR infant cereal) up to amount allowed by participant category
4. Eggs – up to quantity allowed by participant category
5. Fruits and vegetables (cash value benefit or infant food fruits and vegetables) - up to quantity allowed by participant category
6. Whole wheat bread or other whole grains – up to quantity allowed by participant category
7. Beans/peanut butter, up to amount allowed by participant category

F. Federal Regulations Food Package IV - Children (age 1 to 2 years):

1. Whole Milk (fluid) – 16 quarts (A maximum of 1 pound of cheese may be substituted for 3 quarts of milk)
2. Breakfast cereal - 36 ounces
3. Eggs – 1 dozen
4. Fruits and vegetables - up to quantity allowed by participant category
5. Whole wheat bread or other whole grains – 24 ounces
6. Beans/peanut butter – 1 pound of dried beans OR 64 ounces of canned beans OR 16 to 18 ounces of peanut butter
7. Fish (canned) – 6 ounces

G. Federal Regulations Food Package IV - Children (age 2 through 4 years):

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1. Low-fat and fat-free milks and/or low-fat buttermilk (fluid) – 16 quarts (A maximum of 1 pound of cheese may be substituted for three quarts of milk)
2. Breakfast cereal - 36 ounces
3. Eggs – 1 dozen
4. Fruits and vegetables - up to quantity allowed by participant category
5. Whole wheat bread or other whole grains – 24 ounces
6. Beans/peanut butter – 1 pound of dried beans OR 64 ounces of canned beans OR 16 to 18 ounces of peanut butter
7. Fish (canned) – 6 ounces

H. Federal Regulations Food Package V - Pregnant Women:

1. Low-fat and fat-free milk and/or low-fat buttermilk (fluid) – 22 quarts (A maximum of 1 pound of cheese may be substituted for 3 quarts of milk)
2. Breakfast cereal - 36 ounces
3. Eggs – 1 dozen
4. Fruits and vegetables - up to quantity allowed by participant category
5. Whole wheat bread or other whole grains – 48 ounces
6. Beans/peanut butter – 1 pound of dried beans and 16 to 18 ounces of peanut butter OR 1 pound of dried beans and 64 ounces canned beans/peas OR 64 ounces of canned beans and 16 to 18 ounces of peanut butter OR 2 pounds of dried beans OR 128 ounces of canned beans OR 36 ounces of peanut butter.
7. Fish (canned) – 10 ounces

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I. Federal Regulations Food Package V - Partially Breastfeeding Women:

1. Low-fat and fat-free milk and/or low-fat buttermilk (fluid) – 22 quarts (A maximum of 1 pound of cheese may be substituted for 3 quarts of milk)
2. Breakfast cereal - 36 ounces
3. Eggs – 1 dozen
4. Fruits and vegetables - up to quantity allowed by participant category
5. Whole wheat bread or other whole grains – 48 ounces
6. Beans/peanut butter – 1 pound of dried beans and 16 to 18 ounces of peanut butter OR 1 pound of dried beans and 64 ounces canned beans/peas OR 64 ounces of canned beans and 16 to 18 ounces of peanut butter OR 2 pounds of dried beans OR 128 ounces of canned beans OR 36 ounces of peanut butter.
7. Fish (canned) – 15 ounces

J. Federal Regulations Food Package VI - Postpartum Women:

Includes Texas WIC participant category Some Breastfeeding Women and Some Breastfeeding Multiple Infants from the same pregnancy.

1. Low-fat and fat-free milk and/or low-fat buttermilk (fluid) – 16 quarts (A maximum of 1 pound of cheese may be substituted for 3 quarts of milk)
2. Breakfast cereal - 36 ounces
3. Eggs – 1 dozen
4. Fruits and vegetables - up to quantity allowed by participant category
5. Whole wheat bread or other whole grains – 48 ounces
6. Beans/peanut butter – 1 pound of dried beans OR 64 ounces of canned beans OR 16 to 18 ounces of peanut butter
7. Fish (canned) – 10 ounces

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K. Federal Regulations Food Package VII - Fully Breastfeeding Women:

This food package will also be issued to Pregnant with Multiples, Pregnant Fully or Partially Breastfeeding, and Partially Breastfeeding Multiples from the same pregnancy:

1. Low-fat and fat-free milk and/or low-fat buttermilk – 24 quarts (A maximum of 2 pounds of cheese may be substituted for 6 quarts of milk)
2. Breakfast cereal - 36 ounces
3. Eggs – 2 dozen
4. Fruits and vegetables - up to quantity allowed by participant category
5. Whole wheat bread or other whole grains – 48 ounces
6. Beans/peanut butter – 1 pound of dried beans and 16 to 18 ounces of peanut butter OR 1 pound of dried beans and 64 ounces of canned beans OR 64 ounces of canned beans and 16 to 18 ounces of peanut butter OR 2 pounds of dried beans OR 128 ounces of canned beans OR 36 ounces of peanut butter.
7. Fish (canned) – 20 ounces

L. Fully Breastfeeding Women Breastfeeding Multiple Infants from the same pregnancy – receives 1.5 times food items in food package VII:

1. Low-fat and fat-free milk and/or low-fat buttermilk (fluid) – 36 quarts (A maximum of 2 pounds of cheese may be substituted for 6 quarts of milk)
2. Breakfast cereal - 54 ounces
3. Eggs – 3 dozen
4. Fruits and vegetables - up to quantity allowed by participant category

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5. Whole wheat bread or other whole grains – 72 ounces
 6. Beans/peanut butter – combinations such as 2 pounds of dried beans and 16 to 18 ounces of peanut butter OR 1 pound of dried beans and 128 ounces of canned beans OR 128 ounces of canned beans and 16 to 18 ounces of peanut butter OR 1 pound of dried beans and 16 to 18 ounces of peanut butter and 64 ounces of canned beans.
 7. Fish (canned) – 30 ounces